

25CV07973 Joseph Robinson vs Caleb Overton et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-31

Motion: 1. Motions to Compel (3); 2. Motion: Protective Order

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Tentative Ruling: Joseph Robinson vs Caleb Overton et al

Case Number

25CV07973

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/31/2026 - 10:00

Nature of Proceedings

1. Motions to Compel (3); 2. Motion: Protective Order

Tentative Ruling

Joseph Robinson v. Caleb Overton, et al.

Case No. 25CV07973

Hearing Date: August 31, 2026

HEARINGS: 1. Defendants' Motion for Protective Order re: Plaintiff's Special Interrogatories, Set Two, and Request for Production of Documents, Set Two; Request for Monetary Sanctions

2. Plaintiff's Motion to Compel Further Responses to Requests for Admissions, Set One; Request for Monetary Sanctions

3. Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One; Request for Monetary Sanctions

4. Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents, Set One; Request for Monetary Sanctions

ATTORNEYS: For Plaintiff Joseph Robinson: Jason W. Wansor, Rogers Sheffield & Campbell LLP

For Defendants Caleb Overton, and SB Wealth Inc., dba Keller Williams Realty Santa Barbara: R. Chris Kroes, William P. Frusetta, McCarthy & Kroes

TENTATIVE RULINGS:

Defendant's Motion for Protective Order re: Plaintiff's Special Interrogatories, Set Two, and Requests for Production of Documents, Set Two, is denied.

Monetary Sanctions in the amount of \$5,320.00 are awarded in favor of plaintiff and against defendants Caleb Overton and SB Wealth Inc dba Keller Williams Realty Santa Barbara, and their attorneys of record McCarthy & Kroes, jointly and severally, payable to counsel for plaintiff no later than September 28, 2026.

Plaintiff's motion to compel further responses to requests for admissions, set one, is denied as moot as to the substantive responses. However:

Caleb Overton's objections are overruled.

Monetary Sanctions in the amount of \$5,985.00 are awarded in favor of plaintiff and against defendant Caleb Overton and his attorneys of record McCarthy & Kroes, jointly and severally, payable to counsel for plaintiff no later than September 28, 2026.

Plaintiff's motion to compel further responses to special interrogatories, set one, is moot as to special interrogatories Nos. 17, 18, and 22. The motion is denied as to special interrogatories Nos. 24 and 25. No monetary sanctions are awarded in favor of or against either party.

Plaintiff's motion to compel further responses to requests for production of documents, set one, is moot as to requests Nos. 7, 14, and 24. The motion is denied as to requests Nos. 15, 16, and 23. No monetary sanctions are awarded in favor of or against either party.

Background:

This action commenced on December 19, 2025, by the filing of the complaint by plaintiff Joseph Robinson against defendants Caleb Overton (Overton) and SB Wealth Inc., dba Keller Williams Realty Santa Barbara (Keller Williams) (collectively "defendants") for: (1) Fraudulent Misrepresentation, (2) Fraudulent Concealment, (3) Negligent Misrepresentation, (4) Breach of Fiduciary Duty, (5) Unfair Business Practices, (6) Professional Negligence, and (7) Breach of Implied Contract.

As alleged in the complaint:

In April 2024, plaintiff engaged defendants as his real estate agent and brokerage to represent him in the purchase of real property located at 3621 San Pedro Lane, Santa Barbara. (Compl., ¶ 8.)

During escrow for the purchase of the property, defendants obtained from the seller or the seller's agent "Previous Transaction" disclosure packets from prior sales of the property, but defendants failed to disclose to plaintiff critical information, including: (1) Engineering and drainage files documenting severe foundation cracks, saturated soil beneath the primary bedroom, missing anchor bolts, concrete deterioration, and over \$80,000 in prior drainage and foundation repairs, (2) The Action Home Inspection report, from 2009, showing significant moisture conditions, seasonal ponding beneath the living room and half bath, and long-term drainage deficiencies, (3) The seller's 26-page Timeline chronicling decades of flooding, mold remediation, fraudulent or incorrect construction records, and chronic water intrusion, and (4) Prior seller questionnaires disclosing water intrusion, mold clearance reports, crawlspace flooding, HVAC failures, plumbing failures, and structural deficiencies. (Compl., ¶ 10.) The documents totaled nearly 300 pages and were material to the property's condition. (Ibid.) Defendants without the disclosure packets during escrow, allowing them to be mislabeled, misfiled, or deliberately obscured. (Id. at ¶ 12.)

Defendants pressured plaintiff to remove all contingencies in order to close the transaction while acknowledging via text that material 2007 sale disclosures existed and would be provided. (Compl., ¶ 11.) Defendants downplayed the importance of contingencies in a multiple-offer environment despite knowing plaintiff had incomplete disclosures. (Ibid.)

On April 26, 2024, defendants misrepresented to plaintiff that they were sending a 485-page full disclosure via a Google Drive link, when in fact no such transmission occurred until well after closing. (Compl., ¶ 13.)

The transaction closed in May 2024, without plaintiff receiving the material disclosures. (Compl., ¶ 14.) Defendants only provided the seven Previous Transaction packets on August 26, 2024, more than three months after closing, buried in a Dropbox link labeled "broker file," without explanation. (Ibid.)

On September 17, 2025, when confronted by plaintiff about the delayed disclosures, defendants responded that the documents should have been sent during escrow but provided no proof of transmission. (Compl., ¶ 15.) Subsequent inquiries were met with evasion, including refusal to respond due to perceived threats of legal action, followed by unsupported implications that the disclosures had been sent. (Ibid.)

Had the disclosures been provided during escrow, plaintiff would have canceled the transaction immediately due to the revealed defects, including chronic moisture intrusion, flooding, foundation failures, mold history, illegal construction, drainage defects, and long-term structural instability. (Compl., ¶ 16.)

On May 16, 2024, shortly after closing, plaintiff discovered severe defects matching those in the concealed documents, including a muddy and wet crawlspace beneath the primary bedroom. (Compl., ¶ 17.) Over the following months, plaintiff incurred substantial costs for: (1) Mold confirmation and remediation in multiple areas, (2) HVAC replacement, insulation, and partial demolition, (3) Demolition of the hall bathroom, (4) New roof installation, which failed to resolve humidity issues, (5) Window replacements due to sealing failures, (6) Stucco repair, drainage consultation, hydrology review, and crawlspace evaluation, (7) Addressing structural concerns, and (8) A major square-footage discrepancy. (Compl., ¶ 17.)

Plaintiff's damages exceed hundreds of thousands of dollars, including significant repair and remediation costs to address undisclosed defects, including drainage, encapsulation, ventilation, and grading, among other necessary measures; loss of use and relocation costs; health-related impacts; emotional distress; diminution in property value; and attorneys' fees and costs. (Compl., ¶ 18.)

On May 15, 2026, defendants answered the complaint with a general denial and 25 affirmative defenses.

On January 28, 2026, plaintiffs served Overton with Requests for Admissions, Set One (RFAs), Special Interrogatories, Set One (SIs), and Requests for Production of Documents, Set One (RFPs) (collectively the “discovery requests”). (Wansor decs in support of each motion, ¶ 2 & Exhs. 1.)

Overton served initial responses to the discovery requests on March 3, 2026. (Wansor decs in support of each motion, ¶ 4 & Exhs. 2.)

Following some meet and confer efforts, plaintiff filed the present motions to compel further responses to the discovery requests.

Overton opposes the motions to compel.

On June 30, 2026, defendants filed the present motion for protective order re: plaintiff’s SIs, Set Two, and RFPs, Set Two.

Plaintiff opposes the motion for protective order.

Analysis:

“Civil discovery is intended to operate with a minimum of judicial intervention. “ ‘[I]t is a ‘ “central precept” ’ of the Civil Discovery Act . . . that discovery ‘ “be essentially self-executing[.]” ’ ” [Citations.]” (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402.)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

“A trial court must be mindful of the Legislature’s preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery. . .” (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

Motion for Protective Order

Defendants seek an order relieving them of the obligation to respond to plaintiff’s SIs, Set Two, on the grounds the SIs exceed the presumptive statutory limit of 35 SIs and that the discovery is oppressive and unreasonably cumulative of discovery already propounded and answered. (Motion, p. 2, ll. 13-16.)

The SIs consist of SIs Nos. 26 through 100 as to SB Wealth, and SIs Nos. 27 through 101 as to Overton.

The SIs are contention interrogatories that seek facts supporting each affirmative defense asserted by defendants, identities of persons with knowledge of those facts, and identification of documents supporting each affirmative defense.

Defendants also seek an order reliving them of the obligation to respond to plaintiff’s RFPs, Set Two, on the grounds that the requests beyond No. 35 are “unreasonably cumulative, oppressive, and impose an undue burden disproportionate to the

needs of this single-transaction case.” (Motion, p. 2, ll. 17-20.)

The RFPs consist of RFPs Nos. 26 through 51 as to SB Wealth, and RFPs Nos. 27 through 51 as to Overton.

The RFPs seek the production of documents supporting defendants’ affirmative defenses.

Defendants’ first argument, pertaining to the SIs, are that they exceed the 35 interrogatory presumptive limit and plaintiff’s supporting declaration does not satisfy his burden to justify that number.

“(a) A party may propound to another party either or both of the following:

(1) Thirty-five specially prepared interrogatories that are relevant to the subject matter of the pending action.

(2) Any additional number of official form interrogatories, as described in Chapter 17 (commencing with Section 2033.710), that are relevant to the subject matter of the pending action.

(b) Except as provided in Section 2030.070, no party shall, as a matter of right, propound to any other party more than 35 specially prepared interrogatories. If the initial set of interrogatories does not exhaust this limit, the balance may be propounded in subsequent sets.

(c) Unless a declaration as described in Section 2030.050 has been made, a party need only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance, under Section 2030.240, on the ground that the limit has been exceeded.” (Code Civ. Proc., § 2030.030.)

“(a) Subject to the right of the responding party to seek a protective order under Section 2030.090, any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following:

“(1) The complexity or the quantity of the existing and potential issues in the particular case.

“(2) The financial burden on a party entailed in conducting the discovery by oral deposition.

“(3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.

“(b) If the responding party seeks a protective order on the ground that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories.” (Code Civ. Proc., § 2030.040.)

“Any party who is propounding or has propounded more than 35 specially prepared interrogatories to any other party shall attach to each set of those interrogatories a declaration containing substantially the following:

DECLARATION FOR ADDITIONAL DISCOVERY

I, _____, declare:

1. I am (a party to this action or proceeding appearing in propria persona) (presently the attorney for _____, a party to this action or proceeding).

2. I am propounding to _____ the attached set of interrogatories.

3. This set of interrogatories will cause the total number of specially prepared interrogatories propounded to the party to whom they are directed to exceed the number of specially prepared interrogatories permitted by Section 2030.030 of the Code of Civil Procedure.

4. I have previously propounded a total of _____ interrogatories to this party, of which _____ interrogatories were not official form interrogatories.

5. This set of interrogatories contains a total of _____ specially prepared interrogatories.

6. I am familiar with the issues and the previous discovery conducted by all of the parties in the case.

7. I have personally examined each of the questions in this set of interrogatories.

8. This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because _____.
(Here state each factor described in Section 2030.040 that is relied on, as well as the reasons why any factor relied on is applicable to the instant lawsuit.)

9. None of the questions in this set of interrogatories is being propounded for any improper purpose, such as to harass the party, or the attorney for the party, to whom it is directed, or to cause unnecessary delay or needless increase in the cost of litigation.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct, and that this declaration was executed on _____.

(Signature)

Attorney for" (Code Civ. Proc., § 2030.050.)

The declarations provided by plaintiff comply with Code of Civil Procedure section 2030.050. For section No. 8 of the declaration, which defendants argue is inadequate, plaintiff's counsel declares:

"The number of questions is warranted under paragraphs (1) and (3) of subdivision (a) of Section 2030.040 of the Code of Civil Procedure because of the complexity and the quantity of issues in this case. This set of interrogatories is directed to Defendant's affirmative defenses as set forth in their Answer. The interrogatories are an expedient method of obtaining the information sought because Defendant's responses will set forth the basis of their information and understanding that has led to their affirmative defenses."

Plaintiff counsel's declaration stating why the number of SIs is warranted is code-compliant and sufficient to justify the number of SIs propounded to each defendant.

Contention interrogatories have long been an integral part of discovery practice in California.

"Discovery necessarily serves the function of 'testing the pleadings,' i.e., enabling a party to determine what his opponent's contentions are and what facts he relies upon to support his contentions. [Citations.] '(T)o say that 'contentions' are not a proper subject of interrogatories is to subvert the whole theory of the (discovery) rules and to make it more difficult for a party to find out what the case against him is about than it was under the old practice. * * * To the extent that interrogatories are used to clarify the contentions of the parties, they are an adjunct to the pleadings, * * *. Liberal use of interrogatories for the purpose of clarifying and narrowing the issues made by the pleadings should be permitted and encouraged by the courts.'" (4 Moore, Federal Practice (2d ed.) 33.17, pp. 2311—2312.) Professor Moore's observation, relating to the federal discovery rules from which California's discovery laws are largely derived, is even more pertinent to California practice since, as we have noted, the federal system of pleading, unlike California's, permits a party to clarify his opponent's contentions through devices such as a motion for more definite statement, thus making it less crucial for a party in federal court to obtain information concerning contentions through discovery. [Citation.]" (Burke v. Superior Court of Sacramento County (1969) 71 Cal.2d 276, 281.)

Defendants' arguments that the SIs are overly burdensome and unreasonably cumulative are wholly without merit. The SIs are straight-forward contention interrogatories that have not been previously propounded. It would likely have taken much less time to simply answer the SIs than to proceed with an unmeritorious motion for protective order.

Likewise, defendants' motion with respect to the RFPs is without merit. The RFPs simply seek the production of documents that support defendants' affirmative defenses. Additionally, there is no "rule of 35" with respect to RFPs. Plaintiff is entitled to this basic discovery. If defendants contend that there are documents supporting their affirmative defenses, those documents must be produced.

The motion for protective order will be denied.

In conjunction with the motion, defendants seek \$6,345.00 in monetary sanctions. Plaintiff seeks \$6,650.00 in monetary sanctions for having to oppose the motion.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2017.020, subd. (b))

Defendants did not file the motion for a protective order with substantial justification, nor do any other circumstances make the imposition of sanctions unjust. The motion is completely without merit. As such, monetary sanctions will be imposed against defendants and their attorneys of record.

Plaintiff's counsel declares that he charges \$665.00 per hour and that he spent seven hours associated with opposition the motion. He anticipates an additional three hours for reviewing defendants' reply and appearing at the hearing on the motion. The court will allow seven hours for preparation of the opposition and one hour for review of the reply and appearance at the hearing, for a total sanction of \$5,320.00.

Motion to Compel Further Responses to RFAs

Plaintiff seeks to compel further responses to RFAs 14 through 18, and 23 from Overton.

Overton argues that the separate statement accompanying plaintiff's motion was the first document in which plaintiff identified the requests at issue, quoted Overton's responses, and stated reasons directed to a particular request. (Frusetta decl., ¶ 7.) Upon reviewing the separate statement, Overton elected to supplement the responses, which he did on August 12, 2026. (Ibid.)

As phrased, Overton's representation that the separate statement is the first time the RFAs were identified, is a misrepresentation. Those RFAs and the responses were identified in the March 19, 2026 meet and confer letter (Wansor decl., Exh. 3), and then again via email meet and confers on May 1, 2026, and May 7, 2026. (Wansor decl., Exhs. 8, 9.)

"Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.)

"The party to whom requests for admission have been directed shall respond in writing under oath separately to each request. Each response shall answer the substance of the requested admission, or set forth an objection to the particular request." (Code Civ. Proc. § 2033.210, subds. (a-b).)

"(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) Each answer shall:

(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.

(2) Deny so much of the matter involved in the request as is untrue.

(3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

(c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (Code Civ. Proc., § 2033.220.)

RFAs "differ fundamentally from other forms of discovery. Rather than seeking to uncover information, they seek to eliminate the need for proof." (Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 735.)

The following are the RFAs in dispute and Overton's responses:

RFA No. 14: "Admit that YOU stated on September 17, 2025, that the disclosures "should have been sent" during escrow."

Response to RFA No. 14: "Responding Party objects to this Request as vague and ambiguous as to the term 'disclosures,' as it is unclear whether this refers to the PREVIOUS TRANSACTION DISCLOSURES, other disclosures, or disclosures generally.

Responding Party objects to this Request as vague and ambiguous as to the context in which the alleged statement was made, including to whom the statement was made and the medium of communication.

Responding Party objects to this Request to the extent the phrase 'should have been sent' is taken out of context and may mischaracterize any statement made by Responding Party."

RFA No. 15: "Admit that YOU provided no proof of transmission when requested by Plaintiff in September 2025."

Response to RFA No. 15: "Responding Party objects to this Request as vague and ambiguous as to the phrase 'proof of transmission,' as it is unclear what would constitute sufficient 'proof' under this Request.

Responding Party objects to this Request as vague and ambiguous as to the phrase 'when requested by Plaintiff,' as it is unclear what specific request is being referenced, the date of such request, or the medium of communication.

Responding Party objects to this Request as vague and ambiguous as to the term 'transmission,' as it is unclear whether this refers to the PREVIOUS TRANSACTION DISCLOSURES, other disclosures, or disclosures generally.

Responding Party objects to this Request as compound in that it seeks admissions as to multiple distinct matters-that a request was made by Plaintiff, that the request was made in September 2025, and that Responding Party provided no proof-each of which requires a separate response, in violation of Code of Civil Procedure section 2033.060, subdivision (f), which requires that each request be full and complete in and of itself."

RFA No. 16: "Admit that YOU refused to respond to Plaintiff's inquiries due to perceived threats of legal action."

Response to RFA No. 16: "Responding Party objects to this Request as vague and ambiguous as to the phrase 'refused to respond,' as it is unclear what conduct would constitute a refusal under this Request.

Responding Party objects to this Request as vague and ambiguous as to the phrase 'Plaintiff's inquiries,' as it is unclear what specific inquiries are being referenced, the dates of such inquiries, or the medium of communication.

Responding Party objects to this Request as vague and ambiguous as to the phrase 'perceived threats of legal action,' as it is unclear what communications would constitute a 'threat' or who allegedly perceived such threats.

Responding Party objects to this Request as compound in that it seeks admissions as to multiple distinct matters-that Responding Party refused to respond to inquiries and the reason for such refusal-each of which requires a separate response, in violation of Code of Civil Procedure section 2033.060, subdivision (f), which requires that each request be full and complete in and of itself.

Responding Party objects to this Request as argumentative in that it presupposes that Responding Party refused to respond to Plaintiff's inquiries."

RFA No. 17: "Admit that on September 30, 2025, YOU told Plaintiff the disclosures had been sent during escrow without supporting evidence."

Response to RFA No. 17: "Responding Party objects to this Request as vague and ambiguous as to the term 'disclosures,' as it is unclear whether this refers to the PREVIOUS TRANSACTION DISCLOSURES, other disclosures, or disclosures generally."

Responding Party objects to this Request as vague and ambiguous as to the phrase 'without supporting evidence,' as it is unclear what would constitute 'supporting evidence' under this Request.

Responding Party objects to this Request as vague and ambiguous as to the context in which the alleged statement was made, including the medium of communication.

Responding Party objects to this Request as compound in that it seeks admissions as to multiple distinct matters-that a statement was made, that the statement was made on September 30, 2025, the content of the statement, and that no supporting evidence was provided-each of which requires a separate response, in violation of Code of Civil Procedure section 2033.060, subdivision (f), which requires that each request be full and complete in and of itself.

Responding Party objects to this Request as argumentative in that the phrase 'without supporting evidence' presupposes that no evidence was provided."

RFA No. 18: "Admit that YOU were supervised by SB WEALTH, INC., a California corporation, dba KELLER WILLIAMS REALTY SANTA BARBARA (hereafter, 'Keller Williams') in the TRANSACTION."

Response to RFA No. 18: "Responding Party objects to this Request as vague and ambiguous as to the term 'supervised,' as it is unclear what level, type, or extent of supervision would satisfy this Request."

Responding Party objects to this Request as it calls for a legal conclusion as to the nature and extent of the supervisory relationship between Responding Party and Keller Williams, which is a question of law to be determined by the trier of fact.

Responding Party objects to this Request as vague and ambiguous as to whether it seeks an admission regarding the general employment or brokerage relationship or specific supervision related to the TRANSACTION."

RFA No. 23: "Admit that the PREVIOUS TRANSACTION DISCLOSURES totaled nearly 300 pages."

Response to RFA No. 23: "Responding Party objects to this Request as vague and ambiguous as to the phrase 'nearly 300 pages,' as it is unclear what page count would constitute 'nearly' 300 pages. A Request for Admission must be precise in what is being sought. As written, it leaves the Responding Party speculating as to what is being asked."

Responding Party objects to this Request as compound in that it encompasses seven separate disclosure packets, and Responding Party's response may differ as to the page count of each packet, in violation of Code of Civil Procedure section 2033.060, subdivision (f), which requires that each request be full and complete in and of itself."

The responses were all non-code-compliant, evasive, contained improper objections, and not made in good faith.

By way of his opposition, Overton, through counsel, declares that On August 12, 2026, Overton served his Second Supplemental Responses to RFAs Nos. 14 - 18, and 23. (Frusetta decl., ¶ 7 & Exh. 6.) The Second Supplemental Responses admit RFA Nos. 14 and 18, and deny RFA Nos. 15, 16, 17, and 23. (Ibid.)

Overton argues that the supplemental responses moot the motion to compel further responses.

A review of the responses shows that Overton has still included the frivolous objections and then states: "Without waiving the foregoing objections, Responding Party responds as follows" Neither by way of his opposition separate statement, nor his memorandum of points and authorities in support of opposition, has Overton attempted to justify any of the objections. As such they will be overruled. Otherwise, the motion is moot as to the admissions and denials. However, the motion is not moot with respect to the requested monetary sanctions.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2033.290, subd. (d).)

Overton's original responses to the RFAs were, as stated above, non-code-compliant, evasive, contained improper objections, and not made in good faith. By failing to provide proper responses, even following meet and confer efforts, necessitated the motion to compel further responses. The failure to provide proper responses was not made with substantial justification and no other circumstances make the imposition of sanctions unjust. Monetary sanctions will be imposed against Overton and his attorneys of record.

Plaintiff's counsel seeks \$10,108.00 in monetary sanctions for the necessity of bringing the motion.

Plaintiff's counsel declares that he charges \$665.00 per hour and that he spent 3.2 hours meeting and conferring, and 4 hours of motion preparation. He anticipates an additional eight hours for reviewing Overton's opposition, researching and drafting a reply and appearing at the hearing on the motion. The court will allow six hours for meeting and conferring and preparation of the motion. The court will allow three hours for review of the opposition, preparation of the reply, and appearance at the hearing, for a total sanction of \$5,985.00.

Motion to Compel Further Responses to SIs

Plaintiff seeks to compel further responses to SIs Nos. 17, 18, 22, 24, and 25.

Overton again argues that the meet and confer efforts were inadequate. Again, the court disagrees. Plaintiff's counsel attempted to meet and confer at least three times regarding the specific interrogatories that are at issue in this motion. If there was any confusion regarding what plaintiff believed was insufficient, or non-code-compliant, about the responses, Overton's counsel could have simply asked for clarification.

Code of Civil Procedure, section 2030.010 provides, "(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial."

A party shall respond to interrogatories, in writing and under oath, by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., section 2030.210 subd. (a).)

Code of Civil Procedure section 2030.220 provides that, "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."

In opposition to the motion, Overton's counsel declares:

On March 3, 2026, Overton provided his initial responses to discovery, including the SIs. (Frusetta decl., ¶ 2 & Exh. 2.)

Following a meet and confer letter from plaintiff's counsel, on April 17, 2026, Overton served supplemental responses to discovery, including the SIs. (Frusetta decl., ¶¶ 3, 5 & Exhs. 3, 4.)

On August 12, 2026, Overton served his second supplemental responses to SIs Nos. 17, 18, and 22. (Frusetta decl., ¶ 9 & Exh. 7.)

Without ruling on the objections at this time, the court will deem the motion moot as to SIs Nos. 17, 18, and 22. This does not preclude plaintiff from initiating further meet and confer efforts and, if necessary, filing a motion to compel further responses should he deem the responses improper or deficient in any other respect.

The remaining SIs and responses are:

SI No. 24: "Identify, including specifying the File No. and description of alleged violations, all Securities and Exchange Commission Administrative Proceedings, in which YOU were named as a Respondent."

Response to SI No. 24: "Responding Party objects to this Interrogatory as overbroad and unduly burdensome in that it seeks information regarding 'all' SEC Administrative Proceedings without any limitation as to time period.

Responding Party objects to this Interrogatory as compound in that it seeks multiple distinct categories of information-identification of proceedings, file numbers, and descriptions of alleged violations-each of which constitutes a separate inquiry, in violation of Code of Civil Procedure section 2030.060, subdivision (f).

Responding Party objects to this Interrogatory to the extent it is not reasonably calculated to lead to the discovery of admissible evidence, as SEC Administrative Proceedings are unrelated to the real estate claims alleged in this action. See Code of Civil Procedure section 2017.010.

Responding Party objects to this Interrogatory to the extent it implicates Responding Party's right to privacy under the California Constitution, Article I, Section 1."

SI No. 25: "Identify, including specifying the Case No., jurisdiction and party names, all Superior Court actions in which YOU were named as a defendant, beginning January 1, 2015 to the present."

Response to SI No. 25: "Responding Party objects to this Interrogatory as overbroad and unduly burdensome in that it seeks information regarding 'all Superior Court actions' over a period of more than ten years without limitation as to subject matter or relevance to the claims at issue in this action.

Responding Party objects to this Interrogatory as compound in that it seeks multiple distinct categories of information-case numbers, jurisdictions, and party names-each of which constitutes a separate inquiry, in violation of Code of Civil Procedure section 2030.060, subdivision (f).

Responding Party objects to this Interrogatory to the extent it is not reasonably calculated to lead to the discovery of admissible evidence, as litigation unrelated to the claims in this action is not relevant. See Code of Civil Procedure section 2017.010.

Responding Party objects to this Interrogatory to the extent it seeks information that is a matter of public record and equally available to the propounding party.

Responding Party objects to this Interrogatory to the extent it implicates the privacy rights of third parties under the California Constitution, Article I, Section 1.

Responding Party objects to this Interrogatory to the extent it implicates Responding Party's right to privacy under the California Constitution, Article I, Section 1."

As to SI Nos. 24, plaintiff's stated reason to compel a further response is:

"This interrogatory is directed toward establishing a history of Overton's deceit, fraud and misrepresentations prior to working as Plaintiff's agent. The request is calculated to lead to the discovery of admissible evidence for that reason alone. The objection that the interrogatories are compound has no merit because the question relates to a single subject: Prior proceedings with the Securities and Exchange Commission Administrative Proceedings, which Overton was named as a Respondent. (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1291.)"

As to SI Nos. 25, plaintiff's stated reason to compel a further response is:

"This interrogatory is directed toward establishing a history of Overton's deceit, fraud and misrepresentations prior to working as Plaintiff's agent. The request is calculated to lead to the discovery of admissible evidence for that reason alone. The objection that the interrogatories are compound has no merit because the question relates to a single subject: prior lawsuits filed against Overton. (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1291.)"

The court does agree that the "compound" objection has no merit, and that objection is overruled. However, there is merit to Overton's other objections. His stated reasons why no further response should be ordered includes:

Both interrogatories seek improper character evidence in violation of Evidence Code section 1101, subdivision (a). The court agrees. With exceptions that are not present here, "evidence of a person's character or a trait of his or her character (whether in the form of an opinion, evidence of reputation, or evidence of specific instances of his or her conduct) is inadmissible when offered to prove his or her conduct on a specified occasion." (Evid. Code, § 1101, subd. (a).) The SIs clearly seek character evidence and is not reasonably calculated to the discovery of admissible evidence.

Overton then argues that the SIs are overbroad in that the SIs seek information that is not limited to issues relevant to this case. Again, the court agrees. SI No. 24 has no time limitation, and does not limit the requested information to fact situations that are similar to the issues in this case. SI No. 25 is even more intrusive. It would include any type of case filed in any Superior Court in which Overton was a defendant. Plaintiff fails to offer any cogent argument or authority that convinces this court that he is entitled to discovery of such broad categories of personal information about Overton.

The court will deny the motion to compel further responses to SIs Nos. 24 and 25. This does not preclude plaintiff from propounding more narrowly tailored SIs that seek only relevant information.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Plaintiff seeks \$10,108.00 in monetary sanctions for bringing the motion to compel. Overton does not request sanctions for opposition the motion.

As Overton did not file supplemental responses to SIs Nos. 17, 18, and 22 until after the motion was filed, and plaintiff failed to prevail on the motion with respect to SIs Nos. 24 and 25, the court finds that plaintiff was only partially successful in his motion. As such, the court finds that the imposition of sanctions against or in favor of either party would be unjust.

Motion to Compel Further Responses to RFPs

Plaintiff seeks an order compelling further responses to RFPs Nos. 7, 14, 15, 22, and 23. The court notes that plaintiff's separate statement identifies RFPs Nos. 7, 14, 15, 16, 23, and 24. Additionally, there are, as acknowledged by the parties, two RFPs No. 14, and subsequent misnumbering after that. This misnumbering has caused confusion. For clarity, the court will address the RFPs as they should have been numbered, and as they are identified in brackets in the separate statements. For example, the second RFP No. 14 will be referred to by its proper designation of RFP No. 15.

Code of Civil Procedure, section 2031.010 provides, in pertinent part:

“(a) Any party may obtain discovery . . . by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of the party on whom the demand is made.

“(b) A party may demand that any other party produce and permit the party making the demand, or someone acting on the demanding party's behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made.”

“The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

“(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling . . .

“(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item, or

“(3) An objection to the particular demand for inspection, copying, testing, or sampling.” (Code Civ. Proc. § 2031.210, subd. (a).)

Code of Civil Procedure, section 2031.240, provides:

“(a) If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.

“(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

“(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

“(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

“(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

“(2) It is the intent of the Legislature to codify the concept of a privilege log as that term is used in California case law. Nothing in this subdivision shall be construed to constitute a substantive change in case law.”

Overton's counsel declares that before the motion was filed, on April 17, 2026, he filed a supplemental response to RFP No. 24, and after the present motion was filed, on August 12, 2026, Overton served his second supplemental responses to requests Nos. 7 and 14.

Without ruling on the objections at this time, the court will deem the motion moot as to RFPs Nos. 7, 14, and 24. This does not preclude plaintiff from initiating further meet and confer efforts and, if necessary, filing a motion to compel further responses should he deem the responses improper or deficient in any other respect.

The remaining RFPs in dispute are 15, 16, and 23. The RFPs and responses are as follows:

RFP No. 15: “All records regarding any Complaints made against YOU.”

Response to RFP No. 15: “Responding Party objects that the numeration of this request was number 14 by the Requesting Party when it is request number 15. Responding Party will maintain correct numeration.

Responding Party objects to this Request as overbroad and unduly burdensome in that it seeks ‘all records’ regarding ‘any Complaints’ without reasonable limitation as to time period, subject matter, or relevance to the claims at issue in this action.

Responding Party objects to this Request as vague and ambiguous as to the term 'Complaints,' as it is unclear whether this refers to formal complaints filed with regulatory agencies, informal grievances, civil lawsuits, or other types of complaints.

Responding Party objects to this Request to the extent it is not reasonably calculated to lead to the discovery of admissible evidence, as complaints unrelated to the claims in this action are not relevant. See Code of Civil Procedure section 2017.010.

Responding Party objects to this Request to the extent it implicates Responding Party's right to privacy under the California Constitution, Article I, Section 1.

Responding Party objects to this Request to the extent it implicates the privacy rights of third parties under the California Constitution, Article I, Section 1.

Responding Party objects to this Request to the extent it seeks documents not within Responding Party's possession, custody, or control. See Code of Civil Procedure section 2031.230."

RFP No. 16: "All insurance policies that may provide coverage for the claims in the Complaint."

Response to RFP No. 16: "Responding Party objects to this Request as overbroad in that it seeks 'all insurance policies that may provide coverage,' without reasonable limitation, which could encompass policies that are only tangentially or potentially related to the claims at issue.

Responding Party objects to this Request as vague and ambiguous as to the phrase 'may provide coverage,' as it is unclear whether this refers to policies that definitively provide coverage or policies that could potentially provide coverage subject to policy terms, exclusions, or coverage disputes.

Responding Party objects to this Request to the extent it seeks information beyond that required by Code of Civil Procedure section 2017.210, which permits discovery of the existence and contents of insurance agreements but does not require legal analysis of whether a policy 'may provide coverage' for claims.

Responding Party objects to this Request to the extent it seeks documents not within Responding Party's possession, custody, or control. See Code of Civil Procedure section 2031.230."

RFP No. 23: "All calendars, schedules, or logs showing meetings or communications related to the TRANSACTION."

Response to RFP No. 23: "Responding Party objects to this Request as overbroad and unduly burdensome in that it seeks 'all calendars, schedules, or logs' without reasonable limitation as to time period, subject matter, or relevance.

Responding Party objects to this Request as vague and ambiguous as to the phrase 'related to,' as it is unclear what degree of connection to the TRANSACTION would satisfy this Request.

Responding Party objects to this Request as compound in that it seeks multiple distinct categories of documents-calendars, schedules, and logs-each of which constitutes a separate inquiry.

Responding Party objects to this Request as vague and ambiguous as to the term 'logs,' as it is unclear what types of documents would qualify as a 'log' under this Request.

Responding Party objects to this Request to the extent it seeks documents containing information unrelated to the TRANSACTION, the production of which would implicate Responding Party's right to privacy under the California Constitution, Article I, Section 1.

Responding Party objects to this Request to the extent it implicates the privacy rights of third parties under the California Constitution, Article I, Section 1.

Responding Party objects to this Request to the extent it seeks documents not within Responding Party's possession, custody, or control. See Code of Civil Procedure section 2031.230.

Responding Party objects to this Request on the ground that the documents sought are equally available to the Requesting Party."

By way of his separate statement, plaintiff offers, as reasons why further responses should be ordered, for all three of the RFPs:

"This response is evasive and incomplete with Overton failing to produce a single document in response to this request. Overton must respond to each request with a statement of production. Specifically, the Code requires a statement of compliance with a particular demand to state that all non-privileged documents or things in the demanded category that are in the possession, custody, or control of the Responding Party will be produced, in whole or in part (Code Civ. Proc. § 2031.220). Overton must also state whether a diligent search and reasonable effort was made to locate the requested category of documents. None of that was done here."

"A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

- (1) The text of the request, interrogatory, question, or inspection demand;
- (2) The text of each response, answer, or objection, and any further responses or answers;
- (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;
- (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;
- (5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and
- (6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document." (Cal. Rules of Court, rule 3.1345(c).)

In contrast to other forms of discovery: A motion to compel further responses to RFPs "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

Plaintiff's separate statement does not provide any factual or legal reasons compelling a further response, nor does plaintiff set forth any facts showing good cause justifying the discovery sought by the demand. Plaintiff has failed to meet his burden, and the motion will be denied as to RFP Nos. 15, 16, and 23.

"Except as provided in subdivision (d) [not applicable here], the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.320.)

Circumstances make the imposition of sanctions unjust for the same reasons sanctions were denied relative to the SIs.

Judges

Judge Colleen Sterne

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